

Court No. - 35

Case :- WRIT - C No. - 21786 of 2011

Petitioner :- Shiv Lal

Respondent :- State Of U.P. And Others

Petitioner Counsel :- Smt. Sandhya Jaiswal

Respondent Counsel :- C.S.C., Anubhav Shukla

Hon'ble Sunil Ambwani, J.

Hon'ble Kashi Nath Pandey, J.

We have heard Smt. Sandhya Jaiswal, learned counsel for the petitioner. Sri Amit Shukla appears for the respondents.

The petitioner was running a flour mill. It is alleged that in October 2006, the electric motor of flour machine of the petitioner caught fire, and got burnt. He could not repair it due to his economic condition, and applied for temporary disconnection of power connection on 9.11.2006.

It is submitted that on 13.2.2007, the employees of the Power Corporation disconnected the power connection, and a bill for Rs.77,980/- (according to the meter reading upto January 2007), was served on the petitioner, which was not paid by him. The respondents continued to send bills as permanent disconnection was not made. The dues of Rs.62,738/-, when the petitioner had applied for temporary disconnection, are admitted. For reasons, which have not been disclosed, the petitioner did not deposit, even the admitted dues.

By this writ petition, the petitioner is challenging the recovery of Rs. 1,00,030/- and other dues until 31.12.2010.

The bill dated 17.1.2007, filed as Annexure-4 to the writ petition, shows that there were dues of Rs.1,71,581/- on that date. No material has been brought on record as to under what circumstances the citation has been issued for 1,00,030/- in January 2011.

Be that as it may, the court need not decide the question of disputed bills and arrears. The petitioner has statutory remedies under clause 6.5 of the U.P. Electricity Supply Code 2005, made under the Electricity Act 2003, to challenge the bills after making deposit under the rules.

The writ petition is **dismissed** on the ground of statutory alternative remedy.

Order Date :- 16.4.2011

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